

Court No. - 21

Case :- WRIT - C No. - 3850 of 2022

Petitioner :- Niwas Rai

Respondent :- State Of U.P And 2 Others

Counsel for Petitioner :- Ram Awtar

Counsel for Respondent :- C.S.C.,Chetan Chatterjee

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Piyush Agrawal,J.

The petitioner has filed the instant petition with the grievance that although he is availing one electric connection for running his tubewell but two parallel bills bearing different connection numbers are being issued. In support of his submission, he has placed reliance on a report said to have been submitted on his application in the year 2019. The petitioner has also represented to the authorities, but when his complaint was not addressed to, the instant writ petition has been filed praying for a mandamus commanding the respondents to provide the correct electricity bill to him and discontinue issuing bill in respect of a parallel electricity connection.

Sri Chetan Chatterjee, learned counsel appearing on behalf of electricity department states that under Clause 7.10 of the Electricity Supply Code, Executive Engineer of the concerned Division is invested with power to decide such disputes.

Accordingly, without expressing any opinion on merits, we permit the petitioner to approach the Executive Engineer concerned with his grievance alongwith a true attested copy of the instant order and in that event, he shall take remedial measures by passing a speaking order within next eight weeks.

(Piyush Agrawal, J.) (Manoj Kumar Gupta, J.)

Order Date :- 23.2.2022

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